

21.	26PR0220	IN THE MATTER OF: JUDITH LEE JORDAN TRUST
PETITION HEARING		

On July 29, 2026, Petitioner, David Stewart ("Petitioner" or "Trustee"), filed a Petition for Order Determining Trust's Title to Personal Property.

On January 31, 2000, Judith Lee Jordan ("Settlor") created the Judith Lee Jordan Trust. On July 26, 2011, Settlor executed The Third Amendment and Restatement of Trust Agreement of Judith Lee Jordan (the "Trust"), a Comprehensive Transfer Document, and a Pour Over Will.

At the time of Settlor's death, it was discovered she owned the following assets in her individual name outside of the Trust: 1) Bank of America account no. 2201; 2) Bank of America account no. 6060; and 3) Bank of America account no. 0994 (collectively the "Bank of America accounts"). Petitioner contends that Settlor intended the Bank of America accounts to be a Trust asset, as evidenced by the Trust, Comprehensive Transfer Document, and Pour Over Will.

Article Three, Section A of the Trust provides:

Power to Fund the Trust. After this trust is duly executed, I will execute and deliver all deeds, assignments, bills of sale, written instructions and other legal documents necessary to convey and register all of my assets that I choose to place in trust under this trust to be owned by the trustee(s) of this trust and held and administered under the terms and conditions of this trust. Assets which are evidenced by titles or deeds currently being transferred to the trustee of this trust are listed on Schedule A, which is attached to this trust and made a part of this trust. I hereby transfer to this trust all assets not requiring titles or deeds, including but not limited to my furniture, wearing apparel, and personal possessions. Additionally, **I as trustor am now holding and will hold, solely and exclusively for and on behalf of such trust, any and all properties of all kinds, whether presently owned or hereafter acquired, including bank accounts, certificates of deposit, mutual and money market funds of all kinds, securities, agency and custody accounts, notes, and real estate wherever located, but not including tax-favored assets on which recognition of income has been deferred, including but not limited to IRAs, Roth IRAs, qualified plans under IRC §401(a), tax sheltered annuities, and non-qualified deferred compensation. All such property is hereby transferred to and the same shall be owned by such trust. This declaration shall apply even though record ownership or title, in some instances, may, presently or in the future, be registered in my individual name, in which event such record ownership shall hereafter be deemed held in trust even though such trusteeship remains undisclosed.** All assets transferred to the trustee of this trust, whether now or at a later date, shall become part of the trust

estate and be subject to all terms and provisions of this trust document.
(emphasis added)

The Comprehensive Transfer Document states, in part:

The undersigned hereby declares that solely as trustee of and for the benefit of the revocable living trust executed by the trustor and by the initial trustee, and under the provisions of the trust agreement, **the undersigned is now holding and will hold, solely and exclusively for and on behalf of such trust**, the following: any and all properties of all kinds, **whether presently or hereafter acquired (regardless of the names by which acquired) including**, without limitation (except as specifically excepted herein): **owned bank accounts, certificates of deposit, mutual and money market funds of all kinds**, securities, agency and custody accounts, notes, real estate wherever located (including mortgages, contract for deed interests, leaseholds and mineral interests), jewelry, antiques, and any and all other assets wherever located. **All such property is hereby transferred to and the same shall be owned by such trust.** (emphasis added)

Settlor's Last Will and Testament instructs:

I give, devise and bequeath all of the rest, residue and remainder of my estate and property, of whatever kind separate and community, and wherever situated, owned by me at the time of my death to the trustee(s) of the JUDITH LEE JORDAN TRUST, to be added to the assets held in trust and administered by its terms, including any amendments made during my lifetime. If for any reason such distribution of the residue of my estate is ineffective, then I give such residue of my estate to the trustee(s) named in the JUDITH LEE JORDAN TRUST, to serve as trustee(s), to be held in a testamentary trust in accordance with the provisions of the JUDITH LEE JORDAN TRUST, including any amendments thereto made during my lifetime. (emphasis added)

Petitioner requests the Court confirm the Bank of America accounts as trust assets to be held and administered pursuant to the terms of the trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall

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also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property. Petitioner has confirmed she is the sole heir and beneficiary entitled to notice.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that Settlor intended the property be part of the Trust.

TENTATIVE RULING #21:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.